

25STCV09122 25STCV09122

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-02

Motion: DEFENDANT'S MOTION TO COMPEL INITIAL DEPOSITION PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 871.26

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Case Number: 25STCV09122 Hearing Date: September 2, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

JAZMINE

SELENA EMILIANO CRUZ,

Plaintiff,

vs.

FCA US, LLC; RYDELL CHRYSLER DODGE JEEP RAM; and DOES 1
through 10, inclusive,

Defendants.

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CASE

NO.: 25STCV09122

[TENTATIVE] ORDER RE:

DEFENDANT'S MOTION TO COMPEL

INITIAL DEPOSITION PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 871.26

Dept. 733

8:30 a.m.

August 5, 2026

I.

INTRODUCTION

This is a

Song-Beverly action.

On March 27, 2025,

Plaintiff Jazmine Selena Emiliano Cruz ("Plaintiff") filed a complaint against Defendants FCA US, LLC ("FCA") and Rydell Chrysler Dodge Jeep Ram ("Chrysler") ("Defendants"), alleging causes of action for (1) Violation of Subdivision (d) of Civil Code Section 1793.2, (2) Violation of Subdivision (b) of Civil Code Section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2, (4) Breach of the Implied Warranty of Merchantability, (5) Negligent Repair and (6) Fraudulent Inducement – Concealment.

On

May 6, 2026, Defendants filed the instant motion for judgment on the pleadings.

On

August 20, 2026, Plaintiff filed an opposition.

On

August 27, 2026, Defendants filed a reply.

II.

LEGAL STANDARD

A motion for

judgment on the pleadings is the functional equivalent to a general demurrer. (*Lance Camper Mfg. Corp. v. Republic Indemnity Co. of Am.* (1996) 44 Cal.App.4th 194, 198). Like demurrers, motions for judgment on the pleadings challenge the legal sufficiency of the allegations, not their veracity. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994). Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-22). The parties' ability to prove their respective claims is of no concern. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 99.) Though the Court must accept the allegations of the complaint and answer as true (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515), it will not do so for "conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts..." (*Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc.* (2006) 138 Cal.App.4th 1215, 1219-20.)

III.

DISCUSSION

Defendants move for judgment on the pleadings to all causes of action alleged in the complaint on the grounds that they are each time-barred by the applicable statute of limitations.

a.

First,

Second, Third Causes of Action: Violations of the Song-Beverly Act

Defendants

move for judgment on the pleadings as to the first, second, and third causes of action in the complaint because they are time barred by the applicable statute of limitations, as Plaintiff purchased the Subject Vehicle on November 17, 2018, but did not file the initial complaint until March 27, 2025, over six years later.

Previously, the statute of limitations for Song-Beverly claims was four years. (See *Mexia v. Rinker Coat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305-1306.) But, in September of 2024, the California legislature passed Assembly Bill No. 1755, which changed the statute of limitations timing for Song-Beverly claims. (See 2024 Cal Stats. ch. 938 AB 1755.)

Assembly Bill No. 1755 was passed in 2024. (Ibid.)

Under the California Constitution, statutes enacted during regular sessions go into effect on January 1st of the following year. (See CA Constitution art IV § 8.) Thus, this bill came into effect on January 1, 2025. Here, Plaintiff filed his Song-Beverly claims on March 13, 2025, meaning his claims fall under the new statute of limitations provisions.

Code of Civil Procedure section 871.21(a) (Assembly Bill No. 1755) states that “An action covered by Section 871.20 (which is defined as ‘an action seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code’ (i.e., Song Beverly)) shall be commenced within one year after the expiration of the applicable express warranty.” (Code Civ. Proc., § 871.21(a), emphasis added.) Additionally, the statute states that, “(b) Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.” (Id. § 871.21(a).) To summarize, under this new statute, most Song-Beverly claims must commence within a year of the expiration of the express warranty, but all Song-Beverly claims must be brought within six years of purchasing the vehicle.

Here, Plaintiff did not bring any of her Song-Beverly claims within this six-year time frame. Plaintiff purchased the Subject Vehicle from JLRNA on November 17, 2018. (See Compl., ¶ 7.) Plaintiff filed her Song-Beverly claims on March 27, 2025, more than six

years after she bought the Subject Vehicle. (See Compl.) Therefore, under Code of Civil Procedure section 871.21(b), all these claims are facially time-barred. (Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42 [for a statute of limitations to bar a claim on demurrer, “the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred”].)

But Plaintiff argues that Defendants seek retroactive application of section 871.21, which cuts off Plaintiff’s existing remedy and constitutes a due process violation, as Defendant had not opted in to the section prior to Plaintiff filing suit.

As previously discussed, the assembly bill that created Code of Civil Procedure, section 871.20 was passed in 2024. (2024 Cal. Stats. ch. 938 AB 1755.) Under the California Constitution, statutes enacted during regular sessions go into effect on January 1st of the following year. (See CA Constitution, art. IV, § 8.) Thus, Code of Civil Procedure, section 871.20 went into effect on January 1, 2025, creating a one-year statute of limitations and a six-year statute of repose.

Notably, Code of Civil Procedure section 871.30 creates an opt-in structure for manufacturers: Each vehicle manufacturer has a choice of whether to be governed by the new procedural rules. Section 871.30 provides that, “[w]ithin 30 days of the effective date of the act adding this section, a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years. . .” (Code Civ. Proc., § 871.30, subd. (a).) The effective date of this section was April 2, 2025. (Cal. Leg. Information, Code Civ. Proc., § 871.30, subd. (a).) Thus, this statute specifically provides that, if a manufacturer opts-in to these new procedural rules by May 1st, then all cars previously sold cars will be governed by these new rules.

Here, Plaintiff filed her claim on March 27, 2025. At that time, Defendants, specifically FCA, had not yet opted to be governed by Code of Civil Procedure, section 871.20. Plaintiff filed her claim after Code of Civil Procedure, section 871.20 had been enacted, but before Plaintiff could have known that Defendants would opt into this new law. Thus, Code of Civil Procedure, section 871.30, subdivision (a) retroactively applied Code of Civil

Procedure, section 871.20 to a claim Plaintiff filed when the old statute of limitations governed.

This is where the due process issue arises: Where a change in remedy is retroactively made in law, such as the shortening of a time limit provision, there must be a reasonable time permitted for the affected party to exercise their remedy before the statute takes effect. (*Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco* (1935) 4 Cal.2d 120, 122 (*Rosefield*).) If the statute operates immediately to cut off the existing remedy for a party, then the retroactive application of it is unconstitutional as to that party. (*Id.* at pp. 122-123.) "In California, statutes of limitations, being procedural, are normally retroactively applied to accrued causes of action; but the court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right." (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297 (*Aronson*).)

Although *Aronson* and *Rosefield* pertain to statutes of limitation rather than statutes of repose, the same due process concerns are applicable to one as to the other. "Whereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed.... The effect of a statute of repose 'is [thus] harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded.' [Citation.]" (*PGA West Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 177.) Thus, a statute of repose that extinguishes a plaintiff's right of action immediately upon its effective date based on retroactive application infringes on the plaintiff's due process rights.

It is evident from these cases that the main concern is the possibility that a new statute of limitations invalidates previously valid claims. Under Code of Civil Procedure, section 871.20, there is a possibility due to tolling that a claim that could have been brought under the previous four-year statute of limitations can no longer be brought under the new six-year statute of repose. If this possibility arises, the application of the new statute of repose would be unconstitutional as to that plaintiff.

Regardless, Plaintiff's claims are not viable under the old statute of limitations for Song-Beverly claims of four years. (*Mexia v. Rinker Coat Co., Inc.*, *supra*,

174 Cal.App.4th 1297, 1305-1306 [“(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued.... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered”].)

The warranty period relating to an implied or express warranty accompanying a sale of consumer goods is tolled for the period from when the buyer delivers nonconforming goods to the manufacturer or seller for warranty repairs or service or notifies the manufacturer or seller of the nonconformity, until the goods are returned to the buyer or the buyer is notified that the goods are repaired. (Civ. Code, § 1795.6.)

The Court finds that Plaintiff has not alleged any supporting facts or specific dates regarding the repair history of the Subject Vehicle to apply tolling. Plaintiff only alleges that he “Plaintiff discovered Defendants' wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful attempts to repair them. However, FCA failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act.” (Compl., ¶ 38.)

b. Implied Warranty Claim

Defendants similarly move for judgment on the pleadings as to the fourth cause of action

on the ground that it is time-barred.

The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. (Mexia, supra, 174 Cal.App.4th at p. 1304; see Jones v. Credit Auto Center (2015) 237 Cal.App.4th Supp. 1, 9-10 [applying

to sale of used car].) “Undisclosed latent defects ... are the very evil that the implied warranty of merchantability was designed to remedy.” (Mexia, supra, 174 Cal.App.4th at p. 1305 (quoting Willis Mining, Inc. v. Noggle (1998) 235 Cal.App. 747, 749.).)

In cases

where the defect is discovered after the warranty period, a plaintiff may still prevail by demonstrating that the defect was present at the time of purchase but remained latent until the date of discovery. (Ortega v. Toyota Motor Sales, U.S.A., Inc. (9th Cir. 2011) 422 Fed.Appx. 599, 600-01; see Mexia, supra, 174 Cal.App.4th at p. 1301 (duration of implied warranties “does not create a deadline for discovering latent defects or for giving notice to the seller”).) Otherwise, the breach occurs when the latent defect is discovered by the buyer. (Jones supra, 237 Cal.App.4th Supp. 1 at p. 9.) When the implied warranty relates to future events, such as product durability, Civil Code section 1791.1 limits the warranty's duration to one year after the sale. Consequently, the suit must be filed no later than five years after the sale. (Cal. Prac. Guide Civ. Pro. Before Tr. Stat. of Limitations Ch. 4-G.)

A cause of

action for a breach of the implied warranties under the Song-Beverly Act accrues when tender of delivery is made, regardless of the aggrieved party's lack of knowledge of the breach. (Ibid; citing Consumer Warranty Law in California Under the Commercial Code and the Song–Beverly and Magnuson–Moss Warranty Acts (1979) 26 UCLA L. Rev. 583, 638, fn. omitted.) Under the Song-Beverly Consumer Warranty Act, the term “delivery” is interpreted as presenting the goods to an authorized representative of the manufacturer for repair. (Robertson v. Fleetwood Travel Trailers of California, Inc., (2009) 144 Cal.App.4th 785.) Delivery can include giving, transferring, or yielding possession or control of the goods to another party, such as the manufacturer's service and repair facility. (Robertson, supra, 144 Cal.App.4th at p. 785.) If the consumer cannot deliver the goods for repair due to specific reasons, the manufacturer must take steps to obtain an adequate repair opportunity, such as servicing the goods at the buyer's residence or arranging for transportation to the service facility. (Ibid.)

As stated above, Plaintiff filed the instant action on March 27, 2025, over six years after purchasing the Subject

Vehicle. The only time-related allegation in Plaintiff's Complaint is that on November 17, 2018, she purchased the Subject Vehicle. (Compl., ¶ 7.) However, similarly to the issues with the first, second, and third causes of action, Plaintiff has not alleged any specific details or facts regarding the repair history of the Subject Vehicle to suggest when Plaintiff obtained knowledge of facts regarding the claimed defect. (Yeager v. Ford Motor Company (N.D. Cal. 2020) 2020 WL 95645 at *3 ["Where a latent defect exists, the statute of limitations is tolled until the plaintiff discovers, or has reason to discover, the cause of action."].)

c.

Fraudulent

Inducement – Concealment

Defendants similarly move for judgment on the pleadings as to the sixth cause of action on the ground that it is also time-barred.

The statute of limitations for a cause of action for fraud is three years. (Code Civ. Proc., § 338(d).) If an action is brought more than three years after commission of the fraud, the plaintiff has the burden of pleading and proving that he did not make the discovery until within three years prior to the filing of his complaint. (Hobart v. Hobart Estate Co. (1945) 26 Cal.2d 412, 437.) To benefit from the discovery rule which postpones accrual of a fraud claim, a plaintiff bears the burden of pleading their late discovery and their inability to discover the relevant facts earlier. (Czajkowski v. Haskell & White, LLP (2012) 208 Cal.App.4th 166, 177-178.)

The Court

finds, on the face of the complaint, that the statute of limitations has run on Plaintiff's fraud claim, as Plaintiff filed the complaint over three years after the purchase of the Subject Vehicle. Also, as stated above, Plaintiff has not pled delayed discovery or applicable tolling of the statute of limitations., Plaintiff does not allege specific dates on which FCA's alleged concealment occurred or any specific details regarding the repair history of the Subject Vehicle, only that Plaintiff did not discover FCA's wrongful conduct until shortly before filing this action. (Compl., ¶ 38.) On its face, Plaintiff's claim for fraudulent concealment expired on November

17, 2021, given that the only date Plaintiff provides in the complaint is that she purchased the Subject Vehicle on November 17, 2018.

Given that the MJOP is granted on the statute of limitations ground, the Court does not proceed to address Defendants' arguments regarding pleading fraud with the requisite specificity, establishing a duty to disclose, and the economic loss rule.

d. Negligent
Repair

Defendants move for judgment on the pleadings as to the fifth cause of action on the ground that it is barred by the economic loss rule.

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.)

Regarding the economic loss rule, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) However, there is a "recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services." (*Id.*, at p. 933.) "In that context, ... a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide. In such settings, professionals generally agree to provide 'careful efforts' in rendering contracted for services, but 'most clients do not know enough to protect themselves by inspecting the professional's work or by other independent means.'" (*Id.* [citations omitted].) "Given this disparity, a claim for professional negligence can serve the important purpose of ensuring that professionals render the 'careful efforts' they have contracted to provide." (*Id.* [citations omitted].)

In a negligent performance case, a "plaintiff will be entitled to recover economic loss damages without the need to allege and prove personal injury or property damage" based on a consideration of the

following factors: “(1) the extent to which the transaction was intended to affect the plaintiff, (2) the foreseeability of harm to the plaintiff, (3) the degree of certainty that the plaintiff suffered injury, (4) the closeness of the connection between the defendant's conduct and the injury suffered, (5) the moral blame attached to the defendant's conduct, and (6) the policy of preventing future harm.” (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 782, 786.) “[T]he foreseeability of the economic harm to the plaintiff from the defendant's negligent conduct [is] the critical factor.” (Id. at p. 782.)

Though it is possible the economic loss rule would not apply here, Plaintiff fails to allege

facts sufficient to determine so and to properly state a cause of action. Plaintiff fails to plead that Defendants in any way breached their duties during the alleged repair attempts beyond conclusory language, and Plaintiff does not identify the exact damages caused by Defendants due to their alleged negligence nor how they were negligent. Plaintiff does not plead sufficient facts to put defendant on notice of the nature of the claim. Thus, on its face, this allegation appears to fall within the economic loss rule. (See Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988.)

The motion for judgment on the pleadings is granted in its entirety.

IV.

CONCLUSION

Based on the foregoing, Defendants' motion for judgment on the pleadings is GRANTED in its entirety with thirty (30) days leave to amend.

Dated this 2nd
day of September 2026

Hon. Gary

D. Roberts

Judge
of the Superior Court